

Vehicle Repossession Deficiency Dispute

This letter is for the purpose of disputing collection activities on a deficiency from a motor vehicle repossession. It may be used AFTER 2 years from the date of the repo sale, providing there has been no filed claim for a judgment. It should not be used if you have been sued, or if the repossession is less than 2 years ago. Send a copy to EACH of the parties CRRR.

Date:

Your Name
Address
City, State ZIP

Collection Agency
Address of CA

Name of Original Creditor
Address of OC

Name of Original Seller (car dealer)
Address of Original Seller

Re: Account #: (collection agency #)
Account #: (original creditor #)

Make -model -vin# -sale date

To Whom It May Concern,

I am writing in regard to the above referenced accounts and transactions. This is not a refusal to pay, but a notice that this account is disputed.

This vehicle was repossessed by (name of OC) in the State of (X) on or about, xx/xx/xxxx, and resold on or about xx/xx/xxxx.

Under the laws of the State of (State of Repo) UCC § 9.506 and State RISA and MVISA statutes a deficiency can not be claimed unless all of the required notices were properly and timely given, and all of the allowable redemption and cure time limits were adhered to.

Please provide copies of the legal notices and proof of the commercially reasonable manner of the resale of the subject vehicle.

If no such proof is provided within 14 days from receipt of this notice, the alleged claim of a deficiency will be considered null and void, and any continued collection activities, or continued reporting of this invalid claim on my credit reports will be considered a violation of the FDCPA and FCRA.

In addition, if you singularly or severally fail to comply with the above requests, I reserve the right to seek damages against all parties, under all available State and Federal statutes and UCC § 9 remedies.

Sincerely,

Your Signature

Your Name